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Case Number: 23STCV03977 Hearing Date: July 2, 2026 Dept: 224

Bell v. Podcastone Sales, LLC

TENTATIVE RULING

The motion to disqualify is DENIED.

Introduction

On February 23, 2023, Plaintiff filed the Complaint in this action.

On April 6, 2026, Plaintiff filed the instant Motion to Disqualify Counsel.

On April 27, 2026, Defendants filed an Opposition.

On May 1, 2026, Plaintiff filed a Reply.

On May 8, 2026, the Court heard argument on the Motion. The Court ordered supplemental briefing and continued the hearing to July 2, 2026.

On June 8, 2026, Defendants filed a Supplemental Opposition.

On June 22, 2026, Plaintiff filed a Supplemental Reply.

Legal Standard

Code of Civil Procedure section 128(a)(5) authorizes the Court to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto. (Code Civ. Proc., § 128, subd. (a)(5).) This authority necessarily includes disqualifying an attorney. (Metro-Goldwyn Mayer, Inc. v. Tracinda Corp. (1995) 36 Cal.App.4th 1832, 1837–1838.) The issue of disqualification ultimately involves a conflict between the clients' right to counsel of their choice and the need to maintain ethical standards of

professional responsibility. (Id.)

However, the paramount concern must be the preservation of public trust in the scrupulous administration of justice and the integrity of the bar and the recognized and important right to counsel of one's choosing must yield to considerations of ethics that run to the very integrity of our judicial process. (Id.) Whether an attorney should be disqualified is a matter addressed to the sound discretion of the trial court. (Henriksen v. Great Am. Sav. & Loan (1992) 11 Cal.App.4th 109, 113.) In exercising that discretion, the trial court is required to make a reasoned judgment which complies with the legal principles and policies applicable to the issue at hand. (Id.)

Motion to Disqualify Counsel

Plaintiff Cherri Bell moves to disqualify Defendants' counsel, EPGGB, on the grounds that from November 7, 2025 through January 7, 2026, EPGGB simultaneously represented Defendants in this action and represented Plaintiff's counsel's spouse and former law partner, Natasha Chesler, in a marital dissolution proceeding in which this lawsuit allegedly constitutes a community asset. Plaintiff contends that the concurrent representation violated the Rules of Professional Conduct, and that disqualification is required notwithstanding EPGGB's subsequent withdrawal from the dissolution matter.

Standing

As an initial matter, the Court is not persuaded that Plaintiff has standing to bring this motion. Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney. [Citations.] (Great Lakes Const., Inc. v. Burman (2010) 186 Cal.App.4th 1347, 1356.) Nevertheless, "Standing arises from a breach of the duty of confidentiality owed to the complaining party, regardless of whether a lawyer-client relationship existed." (DCH Health Services Corp. v. Waite (2002) 95 Cal.App.4th 829, 832.)

Absent an attorney-client relationship, the party seeking disqualification must have had an expectation of confidentiality with the attorney it seeks to disqualify. (DCH Health Services Corp. v. Waite (2002) 95 Cal.App.4th 829, 832-833.) In other words, before a party may disqualify an attorney predicated on the actual or potential disclosure of confidential information, some sort of confidential or fiduciary relationship must exist or have existed between the party and the attorney it seeks to disqualify. (Great Lakes Construction, Inc. v. Burman (2010) 186 Cal.App.4th 1347, 1356; see also Dino v. Pelayo (2006) 145 Cal.App.4th 347, 352-353; see also County of Los Angeles v. Superior Court (1990) 222 Cal.App.3d 647, 658.)

Here, the record does not support the existence of an attorney-client relationship between Plaintiff Bell and EPGGB. Plaintiff Bell was never a client of EPGGB and had no fiduciary or confidential relationship with EPGGB. The asserted conflict runs entirely between EPGGB on one side and Ms. Chesler (and, derivatively, Mr. McCaffrey personally) on the other. Plaintiff concedes she does not rely on a theory of confidential information disclosure as to her. (Motion at 5:28-6:1.)

Plaintiff's reliance on Jarvis v. Jarvis (2019) 33 Cal.App.5th 113 is misplaced. Jarvis permitted a non-client partner to disqualify an attorney purportedly retained on behalf of the partnership because the attorney owed direct duties to the individual partners themselves. (Id. at 133.) That circumstance is absent here. EPGGB owes no duty to Plaintiff and has never owed any duty to Plaintiff. The party who might have had standing to complain of any conflict in the family law representation is Ms. Chesler. She has not done so, and that representation has since ended.

For this reason alone, the motion is properly denied.

Rule 1.7(a) Conflict

Even assuming Plaintiff had standing, the Court is not persuaded that the brief concurrent representation gave rise to a disqualifying conflict.

Rule of Professional Conduct 1.7 provides that "(a) A lawyer shall not, without informed written consent from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter." (Rules of Professional Conduct, Rule 1.7.)

The text of Rule 1.7(a) requires direct adversity. A remote, derivative, or theoretical conflict of interests does not suffice. Here, the two matters involved entirely different parties, different claims, and different facts. Ms. Chesler was not a party to this employment action. Defendants were not parties to the dissolution. The interests of Defendants (defeating Plaintiff's wrongful-termination claims) and the interests of Ms. Chesler (obtaining an equitable division of the marital estate) were not directly opposed.

Plaintiff's theory of adversity rests on the proposition that any recovery by Plaintiff Bell would generate contingent attorney's fees in which Ms. Chesler claims a community-property interest, such that Defendants' success in this case would diminish the marital estate. That chain of consequences is too attenuated to constitute "direct adversity" under Rule 1.7(a).

Rule 1.7(b) Conflict

Plaintiff alternatively contends that, at minimum, the concurrent representation created a "significant risk" that EPGGB's representation of Defendants would be materially limited by its responsibilities to Ms. Chesler. (Cal. Rules Prof. Conduct, rule 1.7(b).) The record does not support that conclusion either.

Lead trial counsel, Ms. Pham, had no communications with Ms. Chesler. Nor did she have any involvement in the family law matter. (Pham Decl. ¶ 9; Glass Decl. ¶¶ 7-8, 12.) Mr. Glass, the family law attorney, had no involvement in the instant employment matter. (Glass Decl. ¶¶ 7-8, 12.) The two attorneys practiced in different departments and in different offices. On this record, no actual or substantial risk that either representation would be materially limited has been shown. While Rule 1.10 imputes conflicts firm-wide, imputation presumes that a conflict exists in the first instance; where, as here, no such conflict has been shown, there is nothing to impute.

To the extent Plaintiff contends that this internal separation is beside the point because the concurrent representation implicates the duty of loyalty rather than confidentiality, that argument is taken up in connection with the supplemental briefing below, and for the reasons there explained it does not alter the conclusions that Plaintiff lacks standing and has not established a disqualifying conflict.

Informed Written Consent

Plaintiff argues that, even if the concurrent representation was consentable, no informed written consent was obtained. Because the Court concludes that no disqualifying conflict has been shown under Rule 1.7(a) or (b), Counsel was not required to obtain informed written consent pursuant to Rule 1.7.

Issues Raised by Supplemental Briefing

In supplemental briefing, Plaintiff reframes the motion as one of concurrent rather than successive representation, arguing that the controlling value is loyalty rather than confidentiality, and that a firm simultaneously representing adverse interests is subject to "a more stringent per se rule of disqualification" that "follows automatically, regardless of whether the simultaneous representations have anything in common or present any risk that confidences obtained in one matter will be used in the other." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (1999) 20 Cal.4th 1135, 1147; id. at pp. 1156-1157 (conc. opn. of Mosk, J.); Flatt v. Superior Court (1994) 9 Cal.4th 275, 284-285.)

Plaintiff adds that withdrawal could not cure the conflict, because “not even by withdrawing from the relationship can an attorney evade” the duty of loyalty. (Flatt, supra, 9 Cal.4th at p. 288; Metro-Goldwyn-Mayer, Inc. v. Tracinda Corp. (1995) 36 Cal.App.4th 1832, 1841; Truck Ins. Exchange v. Fireman's Fund Ins. Co. (1992) 6 Cal.App.4th 1050, 1057-1059.)

The Court acknowledges that concurrent representation is governed more strictly than successive representation and does not turn on any exchange of confidences. However, that principle does not alter the result here, because it speaks to when a firm must be disqualified at the instance of an affected client; it does not decide who may invoke it. The duty of loyalty it enforces is owed to the lawyer's own clients, and in each authority Plaintiff cites, disqualification was sought by or for such a client, not by the opposing party. (SpeedDee Oil, supra, 20 Cal.4th at pp. 1146-1147; M'Guinness v. Johnson (2015) 243 Cal.App.4th 602, 613-619.)

Here, the only persons to whom EPGGB owed a duty of loyalty were Defendants and Ms. Chesler. Neither seeks disqualification. Ms. Chesler has not appeared, and Defendants have confirmed they were apprised of the family-law representation, do not object to it, and oppose removal of their chosen counsel. (Gray Decl. ¶¶ 5-7.)

A non-client adversary gains no standing to enforce a duty owed to others simply because the representation is labeled concurrent, and the interest in the integrity of the proceeding belongs first to the affected clients, who remain free to protect it. (Great Lakes Const., Inc. v. Burman (2010) 186 Cal.App.4th 1347, 1356-1360.) Nor does Plaintiff cite any authority that a firm owes its adversary a duty to detect, or to decline, a conflict arising from another party's choice of counsel, much less one requiring the firm's withdrawal as the remedy for failing to do so. The rule that withdrawal does not cure a completed concurrent conflict fares no better. Even if it applies, that rule protects the clients whose loyalty was divided and gives an adverse party no basis to compel disqualification they do not seek. The per se rule, even at its strongest, neither cures the standing defect nor warrants disqualifying Defendants' counsel of choice.

Conclusion

“[D]isqualification is a drastic course of action that should not be taken simply out of hypersensitivity to ethical nuances or the appearance of impropriety. [Citation.] The purpose of disqualification is not to punish a transgression of professional ethics. Disqualification is only justified where the misconduct will have a ‘continuing effect’ on judicial proceedings.” (Sheller v. Superior Court (2008) 158 Cal.App.4th 1697, 1711, as modified on denial of reh'g (Feb. 6, 2008) (internal citations omitted). Counsel's “mere exposure to the confidences of an adversary does not, standing alone, warrant disqualification.” (Roush v. Seagate Technology, LLC (2007) 150 Cal.App.4th 210, 219.)

Here, Plaintiff lacks standing to seek disqualification on the basis of a conflict between EPGGB and Ms. Chesler, neither of whom is a party to this action. Even if Plaintiff had standing, she has not carried her burden of demonstrating that the brief and now-terminated concurrent representation created direct adversity under Rule 1.7(a) or a significant risk of material limitation under Rule 1.7(b) sufficient to warrant the drastic remedy of disqualifying Defendants' chosen counsel. Nor do the concurrent-representation authorities Plaintiff relies upon compel a different result. The per se rule, and the principle that withdrawal does not cure a completed concurrent conflict, protect the affected clients – here, Defendants and Ms. Chesler. They do not supply a basis for a non-client adversary to compel disqualification that those clients do not seek.

The motion to disqualify is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at

its discretion.